

Crazy Hikers 徒步协会户外活动 免责声明

(English Version belows)

本文件涉及参与户外活动的法律风险与责任说明，请仔细阅读

适用于所有由 Crazy Hikers 协会组织的户外徒步活动

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Crazy Hikers 徒步协会户外活动风险声明

Crazy Hikers 徒步协会提醒所有参与者：

徒步、登山等户外活动本质上存在一定的人身伤害甚至生命危险。尽管瑞士拥有完善的徒步和登山基础设施与救援服务，但意外仍可能发生。徒步活动中可能面临的风险包括但不限于滑倒、摔伤、落石、恶劣天气（如暴风雪、雷暴）、高原反应、迷路以及突发疾病等。

风险管理与安全保障是徒步活动中极为重要的一环，参与者需要清醒地认识到自身能力与活动难度之间的关系。请根据自身经验选择适合的路线，循序渐进地提高难度。意外事故可能超出个人控制范围，因此建议参与者掌握基本急救技能，配备必要的安全与急救设备。

Crazy Hikers 徒步协会致力于提高成员的安全意识与自救能力，倡导个人责任与独立自主。我们鼓励成员参与急救培训课程，并了解户外安全的最佳实践。

Crazy Hikers 徒步协会户外活动参与者免责条款与责任声明

1. 本免责声明适用于由 Crazy Hikers 徒步协会组织的所有户外活动。

本人在参与活动前，已详细了解本次活动的线路、行程、难度，以及可能存在的风险，包括但不限于跌倒、滑落、受伤、落石、突发天气（如暴风雨、雷暴、雪崩、极端气温等）、迷路、财产损失以及其他无法预见的意外事故，并已了解并掌握了应对上述风险、减少或避免伤害的基本措施。

本人自愿参加此项非商业性质的户外徒步活动，清楚理解并完全接受上述所有风险，自愿承担由活动性质及意外因素所产生的全部责任与后果。

2. 凡报名参加本组织户外活动的人员，均被视为具备完全民事行为能力，并已明确了解活动风险及责任范围。

如活动中因非本组织、非领队组的原因所导致的意外事故或损害（包括但不限于第三方过错、不可抗力、参与者自身原因），本组织和领队组不承担任何赔偿责任。但若由于本组织或领队的故意或重大过失导致人身损害的情形，不属于免责范围，本组织和领队组将依法承担相应法律责任。

代替他人报名者，应确保被代报名参加者已明确知晓并接受本声明内容。如被代报名者在活动中发生人身损害且损害非因组织方或领队故意或重大过失所致，本组织和领队组不承担赔偿责任。¹

3. 活动的组织方（领队组）负责提供路线规划、活动信息、现场协调等组织性工作，但户外活动本质上属于自由结合、自愿参与、风险自负的非商业性质活动。

所有参与者应具备完全民事行为能力，并自行承担因户外活动可能产生的一切风险与责任。领队组与组织方对因非自身故意或重大过失行为所致的任何人身或财产损失，不承担民事赔偿责任或补充赔偿责任。

本协会所提供的活动信息仅供参与者参考，不对任何参与者的人身安全或财产安

¹ 根据瑞士《债务法典》（OR）第 100 条及中国《民法典》第 506 条，事先声明排除故意或重大过失行为产生的人身伤害或财产损失赔偿责任的条款无效。

全提供任何明示或暗示的保证或承诺。

4. 为确保户外活动的安全性与有效性，同时尊重户外运动所固有的危险性与不可预测性，参与者报名参加本组织活动，即视为已明确知晓并自愿承担所有可能出现的风险与意外事故所导致的后果。

本组织鼓励参与者在报名参加活动前，主动向家属或紧急联系人告知活动的相关信息及风险。然而，若参与者未告知家属或未获得家属的同意，本组织和领队组对此不承担任何相关法律责任。

所有参加本组织活动的成员必须在报名时主动提供有效的紧急联系人姓名与联系方式。如因参加者未能提供紧急联系人信息，导致在意外发生时无法及时联系家属或相关人员，由此产生的后果由参加者自行承担，本组织与领队不承担相关责任。

5. 为保障所有参与者的安全，报名参加活动时，参加者必须主动、真实、完整地告知组织者和同行者自身是否具备从事长时间徒步或攀高运动的体力条件与健康状况。

如参与者存在任何可能影响活动安全或个人健康的疾病或特殊身体状况（例如但不限于心脏病、哮喘、癫痫、高血压、恐高症、近期重大手术或其他慢性疾病），应主动声明并避免报名参加相关活动。

如参与者隐瞒上述健康信息，或未主动披露足以影响安全的身体状况，导致在活动中发生任何事故或人身伤害，责任及一切法律后果由参与者本人承担，本组织及领队组不承担任何责任。

6. 户外活动属于自助、自主参与的非商业活动。参与者在活动过程中，如因意外事故、突发气候变化、急性疾病或其他无法预见的客观因素而遭受人身伤害时，活动组织方、领队及同行参与者将尽力在自身能力与条件允许范围内提供必要的帮助和救助。

若因客观情况所限，无法避免严重后果的，活动组织方、领队及其他同行成员不承担法律责任。但此免责条款不适用于明显具有救助义务且具备合理实施救助条

件却未履行合理救助义务的情形²。

7. 强烈建议所有参加者在活动前自行购买有效的户外活动或旅行意外伤害保险，涵盖人身意外伤害、紧急救援和医疗救治费用。如参加者未购买相关保险，一旦发生事故，参加者将自行承担全部经济损失，本组织不承担额外的经济责任或赔偿义务。

8. 凡报名参加本组织活动的成员，均视为已充分阅读、理解并同意本免责声明的全部内容，并自愿受其约束。

若参与者在活动过程中实施任何恶意侵犯他人人身、财产权利或涉及违法犯罪的行为，则不适用本免责声明。行为人需独立承担因此产生的全部法律责任，本组织和领队组不承担任何责任。

9. 为确保活动安全有序进行，所有参与者必须在活动过程中服从领队的统一指挥和安排。如参与者拒绝配合领队的合理安排，由此产生的风险和责任由参与者自行承担。

领队有权根据参与者的体力状况、健康状况或其他安全考虑，建议或要求参与者提前终止活动并撤回至安全地点或公共交通接驳点。若参与者在领队明确建议撤退后仍坚持继续活动，所产生的一切风险和后果由参与者本人承担，领队及本组织不再承担任何责任。

10. 原创路线保护与活动影像使用说明

本组织部分活动所采用的路线可能为领队或成员个人原创规划，具有独创性与知识产权。未经原创者书面同意，任何人不得将其用于商业用途、营利性活动或公开传播。如领队在活动前明确声明路线为原创路线，所有成员应予以尊重，不得擅自复制、公开或用于其他用途。

为记录活动与推广组织文化，活动中组织可能会拍摄照片或视频，并用于社交平台或宣传材料。报名表中设置了“是否愿意被拍摄”的选项，如参与者明确表示

² 根据中国《民法典》第 1176 条，自愿参加具有一定风险的文体活动，因其他参加者的行为受到损害的，受害人不得请求其他参加者承担侵权责任；但是，其他参加者对损害的发生有故意或者重大过失的除外。

不同意被拍摄或使用其影像，组织将尊重其意愿，不对其进行拍摄或在平台发布其照片。

11. 个人信息与隐私保护

本组织在活动报名及过程中可能收集参与者的个人信息（包括姓名、联系方式、健康状况、紧急联系人等），该信息仅用于本次活动的组织协调、紧急联络和安全保障用途。

活动免责协议签署确认

本人已详细阅读并充分理解 Crazy Hikers 徒步协会户外活动免责条款及风险声明的全部内容，自愿接受其中所有条款的约束。

Crazy Hikers Hiking Association

Outdoor Activities Disclaimer

(This English version is for reference. The Chinese version shall prevail in case of discrepancies.)

Legal Risks and Liability Statement for Outdoor
Activity Participants. Please read carefully.

Applicable to all outdoor hiking activities organized by
Crazy Hikers Hiking Association

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Crazy Hikers Hiking Association Outdoor Activity

Risk Statement

The Crazy Hikers Hiking Association reminds all participants:

Hiking, mountaineering, and other outdoor activities inherently carry the risk of personal injury or even death. Although Switzerland offers excellent infrastructure and professional rescue services for hiking and mountaineering, unexpected accidents may still occur. Potential risks during hiking activities include, but are not limited to, slipping, falling, rockfalls, severe weather conditions (such as snowstorms and thunderstorms), altitude sickness, getting lost, and sudden illnesses.

Risk management and safety awareness are essential components of hiking activities. Participants must carefully assess their physical ability in relation to the difficulty level of the activity. It is strongly recommended to select routes appropriate to one's experience and to gradually take on more challenging trails. As some incidents may arise beyond personal control, participants are advised to acquire basic first aid knowledge and carry essential safety and emergency equipment.

The Crazy Hikers Hiking Association is committed to improving its members' safety awareness and self-rescue capabilities. We promote personal responsibility and self-reliance, and we encourage all members to participate in first aid training and familiarize themselves with best practices for outdoor safety.

Crazy Hikers Hiking Association Outdoor Activity Liability Waiver and Responsibility Statement

1. This liability waiver applies to all outdoor activities organized by the Crazy Hikers Hiking Association.

Before participating in any activity, I have thoroughly reviewed the route, itinerary, and difficulty level, as well as potential risks involved, including but not limited to slipping, falling, injury, rockfall, severe weather (e.g., storms, thunderstorms, avalanches, extreme temperatures), getting lost, property loss, and other unforeseeable accidents. I am aware of and understand the basic measures to mitigate or avoid these risks. I voluntarily participate in this non-commercial outdoor hiking activity, clearly understand and fully accept all of the above risks, and voluntarily assume full responsibility and consequences arising from the nature of the activity and unexpected events.

2. All participants registering for outdoor activities organized by the Association are deemed to have full civil legal capacity and to clearly understand the associated risks and responsibilities.

If any accident or damage occurs that is not caused by the Association or the leader team (including but not limited to third-party fault, force majeure, or the participant's own conduct), the Association and leader team shall not be held liable. However, in cases of personal injury caused by the intentional acts or gross negligence of the Association or its leaders, such circumstances shall not be exempted from liability, and legal responsibility shall be borne accordingly. Anyone registering on behalf of another must ensure that the represented participant has been fully informed of and agrees to this waiver. If the represented participant suffers personal injury during the activity not due to the organizers' or leaders' intentional misconduct or gross

negligence, the Association and leader team shall not be liable.³

3. The organizers (leader team) provide route planning, activity information, and on-site coordination. However, outdoor activities are inherently non-commercial, voluntarily initiated, and involve self-organized participation and risk-bearing.

All participants must have full civil capacity and assume full responsibility for any risks and consequences resulting from their participation. The organizers and leader team are not liable for any personal injury or property loss not caused by their intentional or grossly negligent acts. All information provided by the Association is for reference only and does not constitute any explicit or implicit guarantee for the personal or property safety of any participant.

4. To ensure the safety and efficiency of the activity, and in recognition of the inherent risks and unpredictability of outdoor sports, participants who register for activities are deemed to have fully understood and voluntarily accepted all potential risks and consequences.

The Association encourages participants to inform their family members or emergency contacts about the activity and its risks prior to registration. However, the Association and leader team shall not be held responsible if a participant fails to do so.

All participants must provide valid emergency contact information at the time of registration. If a participant fails to provide such information and cannot be contacted during an emergency, the participant shall bear all resulting consequences. The Association and leaders are not liable.

5. To ensure safety, participants must proactively, truthfully, and fully inform organizers and fellow participants about their ability and health status relevant

³ According to Article 100 of the Swiss Code of Obligations (OR) and Article 506 of the Civil Code of the People's Republic of China, liability exemption clauses that exclude responsibility for intentional misconduct or gross negligence are invalid.

to long-duration hikes or elevation gain.

Participants with health conditions that may affect personal or group safety (e.g., heart disease, asthma, epilepsy, hypertension, fear of heights, recent major surgery, or chronic illnesses) must disclose such conditions and refrain from joining. If any participant conceals such information and suffers an accident or injury, they shall assume full responsibility. The Association and leaders are not liable for any resulting consequences.

6. Outdoor activities are self-guided and non-commercial in nature. In the event of injury due to accidents, sudden weather changes, acute illness, or other unforeseeable circumstances, organizers, leaders, and fellow participants will provide assistance within reasonable capacity.

If severe consequences cannot be prevented due to objective limitations, the Association, leaders, and others shall not be liable. However, this exemption does not apply if a person with an obvious duty to rescue fails to act when capable of doing so.⁴

7. All participants are strongly encouraged to purchase appropriate outdoor or travel accident insurance covering personal injury, emergency rescue, and medical expenses. If a participant does not obtain insurance and an accident occurs, the participant assumes full financial responsibility. The Association shall not be liable for additional compensation or expenses.

8. By registering for any activity, participants are deemed to have fully read, understood, and agreed to this waiver and accept its binding terms.

⁴ According to Article 1176 of the Civil Code of the People's Republic of China: A person who voluntarily participates in a risky recreational activity shall not claim compensation from others unless the damage was caused intentionally or by gross negligence.

Any participant who commits malicious acts, infringes upon others' personal or property rights, or engages in illegal or criminal behavior shall not be protected by this waiver and will bear full legal responsibility.

9. To ensure safety and order during the activity, participants must follow the instructions of the leader. Refusing to comply may result in risks for which the participant assumes full responsibility.

Leaders have the authority to advise or require participants to withdraw early due to physical condition, health concerns, or safety reasons. If a participant insists on continuing despite such advice, they assume all resulting risks. The leader and Association are no longer responsible.

10. Original Route Protection and Use of Activity Images

Some routes used in activities may be original creations by the leader or members and constitute intellectual property. Without written consent from the creator, they may not be used for commercial, profit-driven, or public dissemination purposes. If a leader declares the route as original, participants must respect this and refrain from unauthorized use. To document and promote the group, photos/videos may be taken during events and shared on social media. The registration form includes an opt-out option. If a participant chooses not to be photographed or filmed, their preferences will be respected.

11. Personal Information and Privacy Protection

The Association may collect participants' personal information (e.g., name, contact details, health status, emergency contacts) for purposes related to activity coordination, safety, and emergency use only.

Participant Waiver Confirmation

I have read and fully understood the entire contents of the Crazy Hikers Hiking Association Outdoor Activity Liability Waiver and Risk Statement, and I voluntarily agree to be bound by all its terms.